

Tentative Rulings
September 18, 2026
Department S-26
Judge Kevin C. Lee

Tentative Rulings for Department S-26 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 521 3519 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Escobedo v. Magallanes*, Case No. CIVSB1416232

Defendant's Demurrer

9/17/26, 8:30 a.m., Dept. S-26

Tentative Ruling

The Court will **OVERRULE** Defendants' demurrer to the Complaint on the grounds that each cause of action is insufficiently plead; Defendants' demurrer to the Complaint on the grounds of uncertainty; and Defendants' demurrer to the Complaint on the grounds that there is another action pending between the same parties on the same cause of action.

Case Summary

This is a quiet title action. On June 5, 2025, Plaintiff Juan Escobedo filed a Complaint against Defendants Estella Magallanes and Michelle Jimenez, alleging the following causes of action: (1) Quiet Title to Real Property; (2) Cancellation of Instruments; and (3) Declaratory Relief.

Plaintiff alleges that on March 18, 2004, Plaintiff and his former wife, Defendant Magallanes, purchased the real property located at 7179 Leedom Drive in the City of Highland ("Property"). At the time of purchase, Defendant Magallanes was advised by their real estate agent that only she would qualify for the purchase money loan, and as a result, title to the Property was taken under Defendant Magallanes' name alone. However, it was always agreed between Plaintiff and Defendant Magallanes that the Property was purchased as community property, and Plaintiff paid part of the purchase price with money he obtained while married to Defendant Magallanes. (Compl. ¶¶ 9-10, Exh. A.)

On December 16, 2019, unbeknownst to Plaintiff, Defendant Magallanes transferred title to the Property to Defendant Jimenez by way of a Grant Deed. At around the same time, Defendant Jimenez obtained a home equity loan against the Property. Plaintiff is informed and believes that this title transfer was done in order to have Defendant Jimenez draw money from the equity of the Property, to which Defendants then distributed between themselves. Plaintiff alleges that the formation of each and every deed associated with the Property were improper and desires to quiet title to the Property, as of March 18, 2004. (Compl. ¶¶ 12-17, Exh. B.)

Defendants filed a general demurrer to each and every cause of action. Plaintiff Escobedo opposes.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

A demurrer predicated on a complaint's failure to state facts sufficient to constitute a cause of action (Code Civ. Proc., § 430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714.)

When evaluating a demurrer, the Court reasonably interprets the pleading by reading it as a whole and all of its parts in their context. (*Blank, supra*, 39 Cal.3d at p. 318.) The material facts that are properly pled are assumed true for purposes of a demurrer, but contentions, deductions, or conclusions of fact or law are not assumed true. (*Ibid.*) Whether a plaintiff can prove the allegations or the difficulty in proving the allegations is of no concern. (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Dist. Agricultural Assn.* (1986) 42 Cal.3d 929, 936.) The complaint is to be liberally construed. (Code Civ. Proc., § 452.)

If the complaint fails to state a cause of action, the Court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at p. 318.) On the other hand, "if it appears from the complaint ... there is no reasonable possibility that an amendment could cure the complaint's defect," sustaining without leave to amend is permissible. (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.)

Analysis

Defendants filed a demurrer to the Complaint on three separate grounds: (1) Plaintiff fails to state sufficient facts to constitute any cause of action (Code Civ. Proc., § 430.10, subd. (e)); (2) the Complaint is uncertain (Code Civ. Proc., § 430.10, subd. (f)); and (3) there is another action pending between the same parties on the same cause of action. (Code Civ. Proc., § 430.10, subd. (c)).

1. Sufficiency of Complaint

A. First Cause of Action – Quiet Title

To state a cause of action to quiet title, the complaint must be verified and include all of the following:

- (a) A description of the property that is the subject of the action... In the case of real property, the description shall include both its legal description and its street address or common designation, if any.
- (b) The title of the plaintiff as to which a determination under this chapter is sought and the basis of the title...
- (c) The adverse claims to the title of the plaintiff against which a determination is sought.
- (d) The date as of which the determination is sought. If the determination is sought as of a date other than the date the complaint is filed, the complaint shall include a statement of the reasons why a determination as of that date is sought.

(e) A prayer for the determination of the title of the plaintiff against the adverse claims.

(Code Civ. Proc., § 761.020; *Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 294.)

Here, Plaintiff has met the pleading requirements for a quiet title claim. The Complaint is verified and contains a description (address, parcel number, tract number) of the Property (Comp. ¶ 8), the title sought and the basis for seeking it (Compl. ¶¶ 9-17, 19), the adverse claims to the title of which a determination is sought (Compl. ¶ 20), and a prayer for the determination of the Plaintiff's title to the Property against the adverse claims of Defendants (Compl. ¶ 22, Prayer at ¶ 1).

Defendants' demurrer to the First Cause of Action is **OVERRULED**

B. Second Cause of Action – Cancellation of Instruments

To prevail on a claim to cancel an instrument, a plaintiff must allege and prove (1) the instrument is void or voidable; and (2) he or she has a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of their position. (Civ. Code, § 3412; *Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900.)

Here, Plaintiff's claim for cancellation of an instrument is sufficiently plead. Plaintiff alleges that the 2004 and 2019 Grant Deeds are voidable because they were formed and executed without his knowledge or consent. (Compl. ¶¶ 14-16, 25.) Plaintiff also alleges that if the deeds are left outstanding, it would cause serious injury to Plaintiff because his real property ownership interest would remain encumbered by those instruments. (Compl. ¶ 26.)

The Defendants' demurrer to the Second Cause of Action is **OVERRULED**

C. Third Cause of Action – Declaratory Relief

To qualify for declaratory relief under Code of Civil Procedure section 1060, a plaintiff is required to show the action presents two essential elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

In general, a declaration of rights or duties with respect to property may be a proper subject of declaratory relief. (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) But even assuming that Plaintiff's action satisfies the first requirement, it must still present an "actual controversy." (Code Civ. Proc., § 1060.) "The 'actual controversy' language in Code of Civil Procedure section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties. [Citation.]" (*Environmental Defense Project of Sierra County v. County of Sierra* (2008) 158 Cal.App.4th 877, 885.) It does not embrace controversies that are "conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court." (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Here, Plaintiff alleges that an actual controversy exists between Plaintiff and Defendants in regard to Plaintiff's alleged ownership interest in the Property, to which Defendants dispute. Plaintiff asserts that a judicial declaration is necessary and proper to determine the respective ownership interests of the parties. (Compl. ¶¶ 28-29.) Such allegations are sufficient to demonstrate an "actual controversy."

The Defendants' demurrer to the Third Cause of Action is **OVERRULED**

2. Uncertainty

In general, demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822, quoting *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

"[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2; accord, *McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387 ["[W]e ignore '[e]rroneous or confusing labels ... if the complaint pleads facts which would entitle the plaintiff to relief.'"]; *Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908 ["[T]he trial court is obligated to look past the form of a pleading to its substance."].)

Here, the Complaint is not incomprehensible, and Defendants do not explain articulate why the Complaint is uncertain and/or ambiguous.

The Defendants' demurrer on the grounds of Uncertainty is **OVERRULED**

3. Concurrent Action

A plea in abatement pursuant to Code of Civil Procedure section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action. (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 787.) In determining whether the causes of action are the same for purposes of pleas in abatement, the rule is that such a plea may be maintained only where a judgment in the first action would be a complete bar to the second action. (*Lord v. Garland* (1946) 27 Cal.2d 840, 848.) Where a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action. (Code Civ. Proc., § 597.)

Here, Defendants argue that the Property has already been adjudicated in the dissolution of marriage between Plaintiff and Defendant Magallanes under Case No. FAMSS1707852 ("Divorce Action"). In support, Defendants attach a copy of the Stipulation and Order filed on

July 18, 2024 in the Divorce Action, whereby the parties stipulated that Defendant Jimenez would be the sole owner of the Property.

However, a demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank, supra*, (1985) 39 Cal.3d at p. 318.) No other extrinsic evidence can be considered (i.e., no “speaking demurrers”). (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

Here, although the Court may take judicial notice of any court records under Evidence Code section 452, subdivision (d), Defendants did not request the Court to take judicial notice of the Stipulation and Order. As such, the Court may not consider this document in connection with the ruling on this demurrer. Moreover, even assuming *arguendo* that the Stipulation and Order is judicially noticeable, Defendants do not present any argument or evidence demonstrating that the claims in the Divorce Action are identical to the claims alleged in this Action.

The Defendant’s Demurrer on the grounds that there is another action pending between the same parties on the same cause of action is **OVERRULED**.
